

****Spied Politicians - Cerrina Feroni (Privacy Guarantor):****

****Violations that Endanger Democracy****

The Vice President of the Guarantor for the protection of personal data comments on the investigation in Perugia regarding the dossier on politicians: "dangerous logic"

****Interview with Ginevra Cerrina Feroni, Vice President of the Guarantor for the protection of personal data****

(by Federico Ferrau, IlSussidiario.net, March 7, 2024)

Behaviors and initiatives "hardly compatible with the logic of individual deviation." This is how Giovanni Melillo, National Anti-Mafia Prosecutor, described yesterday in the Anti-Mafia Commission the conduct of Pasquale Striano, the lieutenant of the Guardia di Finanza who provided information to journalists from Domani, the newspaper of Carlo De Benedetti. This means that Striano did not act alone, and the picture that emerged between Saturday and Sunday regarding the alleged dossier on politicians—especially from the center-right—and VIPs, now under the scrutiny of the Perugia prosecutor's office, is destined to expand, given that Melillo himself spoke of a "market for confidential information." Thus, a real organized system.

The affair "demonstrates unprecedented gravity" – says Ginevra Cerrina Feroni to Il Sussidiario, Vice President of the Guarantor for the protection of personal data – because it shows a systematic violation of privacy and a propensity for a "dangerous Orwellian type of control" for democracy.

****Professor, how would you define what is emerging?****

Despite all the limitations inherent in comments on ongoing investigations, what emerges from the journalistic reconstructions of the affair seems to me to be a serious and repeated abuse of investigative power exercised, probably, without sufficient controls.

****What is the most serious crime?****

It is certainly not up to me, nor to the Guarantor of which I am vice president, to identify the crimes that may have been committed. However, regardless of its criminal relevance, as it is shaping up, the affair subject to the investigation of the Perugia prosecutor's office demonstrates unprecedented gravity. Eight hundred unauthorized accesses to databases of investigative relevance – and thus containing very sensitive information – over five years, if confirmed, would be a worrying figure in itself: a deep and pervasive interference in the private lives of too many people, regardless of their status, unjustified by investigative needs.

We are facing a modus operandi in which the result legitimizes the procedure: the source investigates, searches, finds, if it does not find, insists, passes the information to the journalist, and the journalist writes and publishes, and perhaps an investigation is opened. ****How do you comment on this?****

This is certainly not what the law provides, which legitimizes investigative deepening in the face of suspicious operations only in the presence of certain requirements and, above all, requires a magistrate's review that, in this affair, it will have to be understood how it was conducted.

****What does the law say?****

The applicable norms, even from a privacy perspective, provide for preventive and subsequent obligations regarding accesses made by the judicial police on personal data, the tracking of every activity carried out on databases, periodic checks on operations carried out that must always be proportionate to real investigative needs; never as a dragnet.

In this case, the violation of confidentiality seems to be an accessory element with respect to the collection of information that the press defines as "privileged." ****How do you comment on this aspect?****

The most deleterious effect of this affair is precisely the risk it creates of inducing habituation to systematic violations of privacy. If we start to consider them normal, as the price to pay for an Orwellian control that, moreover, no law imposes nor could ever impose, we end up denying the roots of democracy.

****Isn't that an exaggerated assessment?****

No. The logic of the glass man, the praise of having nothing to hide, has always been the imperative of totalitarian regimes.

The Minister Nordio told Il Foglio that the dossier in question – however one wants to call it – is closely related to the abuse of interceptions and trojans. Do you agree?

They are two different phenomena but both risk inducing a dangerous social acceptance of a progressive loss of freedom. Interceptions, just like preventive controls such as anti-money laundering measures, are valuable investigative tools, but they certainly should not be used as a dragnet nor, even less, abusively. Their use requires extreme rigor because they touch the heart of democracy.

****What would that be?****

The balance, never taken for granted, between freedom and control.

****Journalism?****

It must not yield to the voyeuristic temptation of looking through the keyhole.

****Do you see a methodical siege on privacy?****

Rather than a methodical siege, I would speak of a recurring temptation. Every time there is an intention to legitimize some abuse or alter the relationship between freedom and control on which democracy is based, in favor of security demands or populist slogans, nothing is easier than saying that privacy is an unnecessary obstacle or, worse, obsolete.

****It is not easy to justify it.****

Some appeal to the fact that we live in what Umberto Eco called the exhibition society. However, they forget that Eco himself drew the opposite conclusion of the need to promote...

a new and deeper sensitivity to confidentiality, because, as he wrote, “the defense of privacy is not only a legal issue, but a moral and anthropological-cultural one.”

Do you agree?

Especially today, in an increasingly digital society, there is no defense of freedom that does not involve the protection of privacy: a right that is never tyrannical, but an unavoidable prerequisite for a truly democratic society.

In your opinion, is journalistic activity like that involved in the investigation a prerogative of “freedom of the press”?

Freedom of the press – the cornerstone of democracy, as defined by our Constitutional Court – must not become a pretext to legitimize or, worse, to encourage leaks of information, abuses in the exercise of investigative power, or excesses in investigations. Journalism has a central function in a democratic society, but also a corresponding responsibility that cannot be evaded simply by invoking the right to report.

For what reason?

Because it must always be exercised in respect of the criterion of the essentiality of information and the limits imposed by the protection of the individual, among which, first and foremost, are the rights to dignity and privacy, avoiding sensationalism or exploitation. All of this, of course, regardless of the case at hand, on which the judiciary still needs to clarify.

In your opinion, what should the legislator do today?

Not everything can be resolved with regulations: professional ethics are needed, especially for a delicate function like journalism, and controls over the exercise of power. No regulation can prevent its own violation, thus what makes the difference are the controls on compliance with the law.

Are you referring to any particular initiative?

Prosecutor Melillo, upon taking over the direction of the National Anti-Mafia and Anti-Terrorism Prosecutor's Office, has reorganized the systems of control over access to databases in a rigorous manner, so much so that anomalies have emerged.

What can you tell us instead about the issue of the publicity of investigative acts?

The government bill on criminal procedure (currently under examination by the Chamber in its second reading, ed.) has introduced additional safeguards compared to those already in force regarding the transcription of wiretaps. Many of these innovations conform to the suggestions provided by the

Guarantor on the text, particularly to protect third parties and to achieve a more appropriate balance among the various interests involved: investigative needs, privacy, and the right to defense.